

1.

CASE #	CASE NAME	HEARING NAME
CVME2600493	COUNTY OF RIVERSIDE VS PEREZ ARELLANO	MOTION RE APPROPRIATE MANNER TO SERVE A DECEASED INDIVIDUAL

Tentative Ruling: Deny the motion and stay the matter. The stay will be lifted once the County identifies a proper party under California law.

On January 13, 2026, Plaintiff County of Riverside filed this complaint for nuisance abatement. County alleges that Defendant Jose Perez Arellano is the record owner, but believes that he is deceased. County alleges that the property has accumulated rubbish, junk and trash. Additionally, the property appears to be occupied. The complaint asserts: (1) nuisance per se and (2) public nuisance.

County applies for an order to declare that posting of the summons and complaint is sufficient, or in the alternative, that summons be permitted by publication. It argues that there is no statutory scheme for service where a person holding a recorded interest is deceased and there is no personal representative or probate proceeding. Because there is no probate proceeding, any person would not have legal authority to act for the estate or the subject property. It argues mailing and posting the summons is the most likely to provide actual notice to potential legal holders and is the most practical manner of serving the summons. It requests that any subsequent notices be sent via mail.

The issue not addressed by County is whether it can sue a deceased party. By not naming the decedent's personal representative or successor in interest, County is essentially choosing to sue an estate—as it has admitted that the Defendant is deceased. “ ‘An “estate” is not a legal entity and is neither a natural nor artificial person. It is merely a name to indicate the sum total of the assets and liabilities of a decedent.... [Citations.] An “estate” can neither sue nor be sued.’ ” (*Gee v. Greyhound Lines, Inc.* (2016) 6 Cal.App.5th 477, 481 n.2.) As indicated by Code of Civil Procedure section 377.40, “Subject to Part 4 (commencing with Section 9000) of Division 7 of the Probate Code governing creditor claims, a cause of action against a decedent that survives may be asserted against the decedent's personal representative or, to the extent provided by statute, against the decedent's successor in interest.” County has provided no authority that it can sue a deceased party or his estate. “Contentions are waived when a party fails to support them with reasoned argument and citations to authority.” (*Moulton Niguel Water Dist. v. Colombo* (2003) 111 Cal.App.4th 1210, 1215.)

Code of Civil Procedure section 377.40 governs—it clearly states subject to Part 4 (commencing with Section 9000) of Division 7 of the Probate Code applies. A creditor is defined as “a person who has a claim against estate property” while a claim is defined as a “demand for payment” based on “liability of the decedent, whether arising in contract, tort, or otherwise.” (Probate Code § 9000(a)(1), (c).) Here, County seeks reimbursement for costs and fees, and civil penalties. (Prayer ¶¶10-12.) Thus, it has a claim and must go through the creditor's claims process.

County asserts that there is no pending proceeding. However, Probate Code section 9350 et seq. applies [“This article applies to any claim other than a claim on an action or

proceeding pending against the decedent at the time of death.” County is required to bring a claim under section 9351.

If there is no personal representative, and the creditor is the personal representative, the clerk shall present the claim to the court or judge for approval or rejection. (Probate Code § 9252(a).) If the court or judge approves the claim, it shall be included in the administration. (*Id.* at § 9252(c).) If the court or judge rejects the claim, the personal representative may bring an action against the estate, in which case, the summons is served on the judge, who then appoints an attorney at the expense of the estate to defend the action. (*Id.* at § 9252(c).)

Furthermore, there is no evidence that County has contacted the Public Administrator in light of the fact that there does not seem to be any heirs or beneficiaries of the estate. The Public Administrator may be best equipped for finding any heirs or beneficiaries of the estate.

The matter is stayed until the County addresses the legal defects pertaining to proceeding against a deceased person’s estate under California law.

2.

CASE #	CASE NAME	HEARING NAME
CVME2508905	SHIR V. BRYANT	CMC AND OSC

Tentative Ruling: Dismiss if no appearance. No declaration was filed pursuant to Local Rule 3116.

3.

CASE #	CASE NAME	HEARING NAME
CVSW2401985	RAMOS VS FCA US LLC	MOTION TO ENFORCE SETTLEMENT BY IVAN GUERRERO RAMOS, OSCAR GUERRERO

Tentative Ruling: Grant in part. The court will sign a judgment with the exact terms agreed upon in the 998 Offer to Compromise. Moving party shall submit a Proposed Judgment Order showing a judgment for plaintiff in amount of \$122,000.00 (or less the amount previously paid) with 10% interest on unpaid settlement funds as of January 2, 2026.